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Ruling

Plaintiffs' Motion is **Granted in Part and Denied in Part as Moot**. The Court orders HCR to serve amended responses without the objections that were first asserted on February 26, 2026. All responses should be verified no later than five business days after being served. Sanctions will be awarded, but Plaintiff must file a *brief* amended declaration regarding the amount sought for this specific motion.

12. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM**
INTERROGATORIES AGAINST PROMEDICA EMPLOYMENT SRVCS
FILED BY: CANNON, REGINALD R.
TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. have filed a Motion to Compel Further Responses to Form Interrogatories Against Defendant Promedica Employment Services LLC (PES). It appears that PES served responses to the Plaintiffs' Form Interrogatories, Set One ("FROGS") on February 7, 2025 but it has failed to verify its responses more than one year later. PES responds only, and circularly, that the Motion is premature because the FROG responses are unverified.

Plaintiffs seek an order for PES to submit verifications within 15 days of the hearing, compelling HCR to serve amended responses without objections or exercising the option to specify writings within 15 days of the hearing, and sanctions.

Background

This is an elder abuse case with several defendants. On December 5, 2024, Plaintiffs served Form Interrogatories, Set One on HCR. At the time, HCR was represented by counsel who now only represent certain co-defendants. On February 7, 2025, HCR served responses and objections, but the responses lacked verifications. The parties met and conferred regarding the responses and lack of verifications. In the Court's file are multiple lengthy letters from Plaintiffs' counsel, indications that the parties spoke by telephone, and *no* letters from PES's counsel indicating any plans to amend, supplement, or verify the responses in a timely manner. The meet and confer process addressed several different discovery requests and responses, many of which are the subject of separate motions before the Court on additional hearing dates. With respect to the Form Interrogatories, there appears to have been only one purportedly delinquent *answer*, and that answer is not identified as delinquent in Plaintiffs' moving papers.

Analysis

First, Plaintiffs are correct that Defendant PES must submit verifications to its interrogatory responses, pursuant to Code of Civil Procedure section 2030.250(a). PES may not indefinitely prevent Plaintiffs from receiving discovery by failing to submit verifications and declaring any resulting motions premature. A reasonable time has come and gone, and verifications are significantly delinquent. The requirement that a Motion to Compel may only be filed after service of verified responses does not apply to this Motion. Defendant's citation to section 2031.300 is inapplicable to a motion relating to interrogatory responses.

Second, PES does not rebut that PES has waived objections and the option to produce writings pursuant to section 2030.290, because its response was not complete. The Court is aware, however, that timely *objections* are not waived. (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-658 ("Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely.")).

It should be noted that it does appear that many of the interrogatories cited in the Separate Statement were neither propounded by Plaintiffs nor should they have been, as they do not match the type of case before the Court. The Court is only addressing those interrogatories actually propounded, as shown in Kang Exhibit 25.³ With respect to those interrogatories and the request for verifications, the Motion is **granted**. With respect to those interrogatories and the request for responses without objections, the Motion is **denied**.

Finally, Plaintiffs request an order imposing monetary sanctions against Defendant in the amount of \$6,565 as partial reimbursement for Plaintiffs' attorney's fees. It should be noted that, as of this hearing date, there are three Motions to Compel on calendar against three defendants, two of which are in a slightly different procedural posture, and yet the sanctions requests are identical for these three as well as five more motions to be heard over several coming weeks. The Court will impose appropriate sanctions but they must be specific to each motion. The Court recognizes that initially, discovery responses came jointly from many defendants and much of the meet and confer process addressed several defendants jointly, and several modalities of discovery jointly, but the Court will not award duplicative monetary sanctions. Moreover, certain counsel conducted different aspects of the discovery differently and will not be subject to sanctions to the same degree. The Court will permit supplemental filings relating to the amount of time Counsel spent on this particular motion, recognizing that some of the work overlapped with other motions.

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AGAINST PROMEDICA HEALTH SYSTEM, INC.

³ Counsel's omnibus declaration for all eight motions heard over three separate hearing dates may have saved counsel time, but it has saddled the Court with the burdensome effort of wading through the same 934 pages of documents for each separate motion. In the future, the Court would appreciate declarations that correspond to the separate motions.